

CCMA Form 7.11 — Referring a Dispute

CCMA / BARGAINING COUNCIL REFERRAL — FORM 7.11 (GUIDE)

Purpose

Refer a labour dispute for conciliation (and where applicable subsequent arbitration) under the Labour Relations Act 66 of 1995.

Typical contents

1. Details of employee / trade union referring the dispute
2. Details of employer
3. Nature of dispute (e.g. unfair dismissal — misconduct / incapacity / operational requirements; unfair labour practice; organisational rights; mutual interest)
4. Date of dismissal or act/omission
5. Summary of facts
6. Relief sought (reinstatement, re-employment, compensation)
7. Confirmation of service on the other party

Time limits (critical)

- Unfair dismissal: generally 30 days from date of dismissal (s 191 LRA).
- Unfair labour practice: 90 days from act or awareness.

Late referrals require an application for condonation with a full explanation.

After referral

The CCMA sets the matter down for conciliation. If unresolved, a certificate is issued and the matter may proceed to arbitration or the Labour Court depending on the dispute type.

NOTE: Use the official CCMA form from www.ccma.org.za for actual filings. This is an educational outline.

— End of curated extract. Verify official text before reliance. —